Sechirut Reshut

A critical component of making a communal eruv to allow Jews to carry on Shabbat is to rent ownership of the public areas from the non-Jewish residents enclosed within the eruv borders. The details and mechanism of the rental are described below.

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What is sechirut reshut?

1. If there is a non-Jew who lives in the area that the Eruv encloses, the Jews must "rent" from him his rights to the public areas. This is called *sechirut reshut*.[1]
2. As long as there are two Jews living in in the same area as a non-Jew resident, a sechirut reshut is necessary. If there would only be one Jew or one Jewish family living where there are non-Jews no sechirut reshut is necessary.[2]

How to do sechirut reshut

1. Sechirut reshut works even if it is just verbal. Certainly it is effective if it is a signed document.[3]
2. Ideally, sechirut reshut should be done before making the eruv chatzerot. After the fact, the eruv is effective even if it was done before the sechirut reshut.[4]
3. If a sechirut reshut expired and the eruv food is still around, it is necessary to make a new sechirut reshut and a new eruv.[5]
4. One person can do the sechirut reshut on behalf of all the Jews in the eruv.[6]

Terms of sechirut reshut

1. To rent from the non-Jews it is sufficient to say that he is renting it without any stipulations. It is effective if he says that he's renting from them the spaces in order to permit Jews to carry there on Shabbat.[7]
2. There is no minimum amount that is necessary to pay for the sechirut reshut. If the non-Jew agrees using less than a pruta is acceptable.[8] There is a dispute if it is permissible to do a sheylat reshut, in which the non-Jew lends you the area for free. Initially, one shouldn't use a sheylat reshut.[9]
3. It is fine to do a sechirut reshut for multiple weeks or years at once.[10]

4. If sechirut reshut is made without any specification to its expiration, it is effective as long as the non-Jew has not retracted.[11] If the non-Jew dies, sells, or rents it to another non-Jew a new sechirut reshut is necessary.[12] However, if the term of the sechirut reshut was specified it is effective even if the non-Jew dies, sells, or rents it to another non-Jew.[13]

From whom can one do sechirut reshut?

Practically

1. There are two types of sechirut reshut. The first is a rental of the public areas and allows carrying in those public areas and Jewish homes and the second is a rent of everywhere including the non-Jewish homes.
2. For public areas: Some poskim allow doing sechirut reshut from the government because they can close the streets.[14] Others don't allow this today because the government doesn't own the streets.[15] Even according to those who rely on this sechirut reshut, it is only effective to allow carrying from Jewish homes to the public areas such as the streets but not into non-Jewish homes.[16]
3. For non-Jew's private properties: Some poskim allow doing sechirut reshut from the municipal government because the government has the ability to use people's homes in cases of emergency.[17] Other poskim reject this leniency.[18]
4. Some poskim allow doing sechirut reshut from the police chief since they are like a worker for the citizens.[19]
    1. In practice, most poskim hold that doing a sechirut reshut from the municipality or chief of police is effective to permit carrying from the Jewish houses into the street and public domains, but not into the non-Jewish homes. There is a stringent opinion who would forbid even carrying in the public domains and there is a lenient view who would allow even carrying into the non-Jew's homes.[20]

Detailed Laws

1. It is possible to do sechirut reshut from the non-Jewish owner, his wife, or his worker who can use the area.[21]
2. It is possible to do sechirut reshut from a landlord who rented it to a non-Jew generally it is possible to do sechirut reshut from the landlord unless the landlord left items in the renter's house or could kick the renter out whenever he wants.[22]
3. It is possible to do sechirut reshut from the king on behalf of all of his non-Jewish citizens if either (1) the king is the owner of the land and could house his soldiers and their equipment in the houses of his citizens whenever he wants,[23] or (2) the king owns the streets and can confiscate the street and move it somewhere else.[24] Nowadays, in democracies the first reason usually does not apply.[25]

Apartment Buildings

1. In an apartment building it is sufficient to go to the superintendent to pay a nominal amount in order to rent the hallways and lobby of the building. This, with the other conditions of an eruv chatzerot, would permit carrying from the Jewish apartments into the hallways and lobby but not into the non-Jew or non-religious Jew's apartment.[26]
2. In an apartment building, some poskim allow doing sechirut reshut from the superintendent.[27] Others hold that it is only possible to do sechirut reshut from the superintendent if he could do some activities that isn't

technically allowed in the public areas of the building outside of his duties of his work and people wouldn't care.[28]

Non-Jewish tenants

1. If a non-Jew is a guest at a Jew's house no sechirut reshut is necessary.[29]

Sources

1. Eruvin 61b-62a, Shulchan Aruch O.C. 382:1, Mishna Brurah 382:4. The reason that chazal established sechirut reshut is because they didn't want Jews to live with non-Jews and doing sechirut reshut is difficult. Dirshu 382:1 quotes Ginat Veradim 3:22 who holds that sechirut reshut is no longer necessary nowadays since either way we live among the non-Jews. However, Chatom Sofer 92 and Bet Meir 382:20 argue that it is a dvar shebeminyan and can't be repealed.
2. Eruvin 62a, Shulchan Aruch O.C. 382:1, Mishna Brurah 382:1. The reason that there is no need to do sechirut reshut if there's only one Jew is because it isn't common for one Jew to live together with a non-Jew so chazal didn't make a gezera.
3. Shulchan Aruch O.C. 382:4. See [1] regarding the sechirut reshut of Brooklyn from Mayor Adams for 99 years for 1 dollar.
4. Biur Halacha 382:1 s.v. tzarich
5. Shulchan Aaruch O.C. 382:7. Mishna Brurah 382:27 explains that since eruv doesn't work without sechirut reshut, when the sechirut reshut expires it is as though the eruv rwas nullified and a new one is necessary.
6. Shulchan Aruch O.C. 382:9. Shulchan Aruch Harav 382:12 clarifies that it isn't necessary to specify with the non-Jew that it is on behalf of all of the Jews. Dirshu 382:50 quotes Chazon Ish who says that the minhag is to be lenient if the one who did the sechirut reshut is away for Shabbat.
7. Shulchan Aruch O.C. 382:4
8. Shulchan Aruch O.C. 382:5
9. Shulchan Aruch O.C. 282:12, Mishna Brurah 282:41
10. Does sechirut reshut need to be redone every week? Or Zaruah 2:168 infers from Rashi 62a that sechirut reshut was supposed to be costly and difficult to do every week that it can't be done for more than one week at a time. Rabbenu Baruch M'megensia (cited by Aguda 6:61) and Raavan (Eruvin s.v. im hayu sham) agree. However, Rosh Eruvin 6:1, Sefer Ha'orah 1:52, Tamim Deyim 76, and Sefer Haitim 86 hold that it is fine to do sechirut for a long time at once. Shulchan Aruch O.C. 382:6 codifies the Rosh. Mishna Brurah 382:48 quotes Bet Shlomo who recommends not doing a sechirut for more than 20 years. Shaar Hatziyun 382:48 quotes Pri Megadim who holds that one can make a sechirut reshut forever as long as one does so explicitly.
11. Shulchan Aruch O.C. 382:6. Rama writes that if no time limit was specified it is possible for the non-Jew to retract if he repays the amount of the sechirut. However, Mishna Brurah 382:25 writes that most achronim disagree and hold that he can retract without paying after the first Shabbat. However, Mishna Brurah 382:23 notes, if a time limit was specified the non-Jew cannot retract at all.
12. Mishna Brurah 382:26 and 28
13. Shulchan Aruch O.C. 382:8, Mishna Brurah 382:26 and 29
14. Fundamentally, this idea was raised by the Rivash 710 who writes that the king who owns the streets and is able to take away a street from the people even if they repay them without another street can do sechirut reshut. He compares this to a non-Jewish owner who rents out house to a non-Jewish renter, where if the non-Jewish owner can kick out his tenant he can do the sechirut reshut (Gemara Eruvin 65b, Shulchan Aruch O.C. 382:18). Rama 391:1 codifies this Rivash. Mishna Brurah 391:12 quotes the achronim who accept this Rama, unlike Taz 391:3 who doesn't rely on Rama's reason alone. Shevet Halevi 8:77:2:8 applies this Rivash and Rama to our streets today in Chicago to allow sechirut reshut from the government. Netivot Shabbat 37:27 allows doing sechirut today from the government who can change the streets. He adds that since they can change the streets it is like they're the owners.

15. Chachmat Lev 13 notes that Rivash (reflected by Rama) is clearly based on the fact that the king owned the streets and can kick people out, but the government today doesn't own the streets.
16. Rivash 710, Rama 391:1, Mishna Brurah 391:13, Shevet Halevi 8:77:2:8
17. Fundamentally, this concept was raised by Rav Yitzchak Karo that if the king can house his troops in the houses of the citizens he is considered like the owners. Then it is possible to do sechirut reshut with him. Shulchan Aruch O.C. 391:1 codifies this concept. Biur Halacha 391:1 s.v. shelo quotes Chacham Tzvi 6 who challenges this because the king today can't start a war on his own without agreement from the people. Maharsham 5:33 notes this issue but nonetheless is lenient to allow sechirut reshut from the municipal government. Shevet Halevi 8:97:14 writes that nowadays this leniency is very weak but we can be lenient since some poskim hold that sechirut reshut is no longer necessary. Rav Shlomo Zalman Auerbach (Orchot Shabbat v. 3 ch. 28 fnt. 148) raised another possibility that it is possible to sechirut reshut from the government because they can use people's home in the case of emergency. Even though the prime minister could not create a state of emergency independently, together with the government officials they could. If so, doing a sechirut from one of their representatives is sufficient.
18. Rav Elyashiv (Orchot Shabbat v. 3 ch. 28 fnt. 148 and Dirshu 391:10)
19. Chazon Ish 82:9
20. Rav Hershel Schachter ("Eiruvei Chatzeiros" min 20-27) explains that classically the town mayor or chief of police had access to everyone's houses and as such it is possible to rent from the mayor the entire town. However, in America, the mayor doesn't have such rights but still it is possible to rent from the mayor the streets and public domains. However, this rental wouldn't help with the apartment buildings since the mayor doesn't have rights to the inside of the apartment building.
21. Shulchan Aruch O.C. 382:11
22. Shulchan Aruch O.C. 382:18
23. Bet Yosef 391:1, Shulchan Aruch O.C. 391:1. Biur Halacha 391:1 s.v. shelo quotes Chacham Tzvi 6 who limits this to where the king could declare whenever he wants without consulting his citizens. Dirshu 391:12 quotes Ginat Veradim who says that this leniency does not apply if the king must consult his advisers before declaring war.
24. Rivash 710, Rama 391:1, Mishna Brurah 391:12. This is unlike Taz 391:3 who doesn't rely on this reason alone, but Shaar Hatziyun 391:5 quotes most achronim who disagree.
25. For example, in America, the third amendment took away the ability for government to house soldiers in citizen's homes. Dirshu 391:10 quotes that the Steipler (Karna D'igarta 2:96) and Shevet Halevi (8:97:14 and 8:77:2:8) held that it is impossible to do sechirut reshut from the government today since their rights of forcing people to house soldiers is severely restricted. Karna D'igarta 2:96 writes that the king's right to house soldiers in the houses of the citizens used to be effective for sechirut reshut (Shulchan Aruch 391:1), but today that right is only because the government has control over the citizens but not their houses. See Dirshu 391:10 who quotes Minchat Yitzchak 9:110 based on Chazon Ish that there's no way to be socher reshut in Israel because there's no dina d'malchuta in Israel. Nonetheless, Dirshu there also quotes that Chazon Ish actually allowed a sechirut reshut from the municipal government.
26. Rav Hershel Schachter ("Eiruvei Chatzeiros" min 10-20) explains that it suffices to say to the non-Jew that he is only renting it for religious purposes, since that is considered sechirut reuha. Additionally, if one were to rent the actual area where the non-Jews live then it is considered as though the entire area is under one domain and one may carry everywhere. However, where that's impossible it is possible to rent the area where the non-Jew has access, such as the public domain or the hallways of an apartment building, and then it would be permitted to carry from one's house into those public areas but not into the non-Jew's house. The same applies to a Jew who isn't careful about observing Shabbat publicly. Lastly, the superintendent is considered as though he is the worker who has access to the public domains of the building and can rent out those area. Therefore, in order to create an eruv chetzerot in an apartment building it is possible to make an oral transaction in which one rents the lobby and hallways from the superintendent for religious purposes.
27. Shevet Halevi 8:77:2:8
28. Orchot Shabbat v. 3 ch. 28 fnt. 148 based on Chazon Ish 82:33

29. There are several ways to permit a non-Jew who is a guest at a Jew's house: 1) The non-Jew is only staying there less than 30 days and doesn't visit there regularly. In that case, Shulchan Aruch O.C. 384:1 based on Yerushalmi, Rosh, and Tur that no sechirut reshut is necessary. 2) If the owner can remove the non-Jew (*matzuy lsalkinhu*) a sechirut reshut isn't necessary. This is the view of Gra 382:3 and Biur Halacha (384:1 s.v. eino). 3) The owner only let the non-Jew into his house intending that he wouldn't forbid him from carrying on Shabbat (לא השאיל או השכיר לו על דעת שיאסר עליו). This is the logic of Rashba (Avodat Hakodesh 4:103) codified by Rama 382:1. Bet Meir disagrees on the basis of Rambam. Mishna Brurah (Shaar Hatziyun 382:6, Biur Halacha 384:1 s.v. eino) is hesitant to rely on this Rashba unless it is also possible to remove the non-Jew whenever he wants, in which case even according to Rambam and Gra sechirut reshut isn't necessary. Shulchan Aruch Harav 384:1 does not apply this logic unless the non-Jew is staying there permanently for like a year but if he's just a guest this logic does not apply. Biur Halacha 384:1 s.v. eino quotes this. [Rashba himself does rejects this entire leniency in his Chiddushei Harashba 72a, Avodat Hakodesh (Bet Hanetivot 4:60), and Responsa (Meyuchasot Lramban 220) according to the manuscript version. Nonetheless, Maggid Mishna and Rama based on Rashba (Avodat Hakodesh 4:103) rule like this reason alone. Also, see Chidushei Hameiri 61b who quotes that Ramach, Ramban, and Rashba all held of this leniency.]

Category	Topic
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